

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Rajshahi

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন

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Md. Uzzal Hossain

আবেদনকারী

মাধ্যম

Mr. Md. Tasak Kharul Islam, Advocate

বনাম

The State

Ms. Shiuli Khanom, D.A.G along with

Mr. S.M. Emamul Musfiqu, A.A.G

Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	04.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 305 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 31 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 02.06.2024 passed by the learned Metropolitan Sessions Judge, Rajshahi in Metro. Criminal Appeal No. 305 of 2023 dismissing the appeal and thereby affirming the judgment and order of conviction and sentence dated 10.05.2023 passed by the learned Joint Metropolitan Sessions Judge, 1st Court, Rajshahi in Metro. Sessions Case No. 813 of 2022 corresponding to C.R. No. 193 of 2021 (Boalia) convicting the convict petitioner under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for 04 (four) months and to pay a fine of Tk. 4,00,000/- should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Uzzal Hossain, son of late Sadman Ali be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Joint Metropolitan Sessions Judge, 1st Court, Rajshahi. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩